

25STCV18500 25STCV18500

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 25STCV18500 Hearing Date: August 25, 2026 Dept: 529

SEWBY LLC, et

al. vs PIERCE LAW GROUP, LLP, et al.

motion to quash service of
plaintiffs' complaint

Date of Hearing: August

25, 2026 Trial Date:

None set

Department: 529 Case

No.: 25STCV18500

Moving Party:

Specially Appearing Defendant Pierce Law Group, LLP

Responding Party: Plaintiffs

Sewby LLC and Jaleh Factor

BACKGROUND

On June 26, 2025, Plaintiffs Sewby LLC

and Jaleh Factor filed a complaint against Pierce Law Group, LLP and Estate of

David Albert Pierce for negligence, legal malpractice, and breach of fiduciary

duty. Sewby LLC and Jaleh Factor bring this legal-malpractice action against

Pierce Law Group, LLP, alleging deficient representation in prior Florida

litigation arising from a joint-venture dispute over fashion-mask manufacturing

and distribution during the COVID-19 pandemic. Plaintiffs contend that Pierce Law failed to pursue

direct-damage claims distinct from receivership derivative claims in Miami-Dade County proceedings, resulting in losses.

[Tentative] Ruling

Specially

Appearing Defendant Pierce Law Group, LLP's Motion to Quash Service of Summons of Plaintiff's Complaint is GRANTED.

DISCUSSION

Specially

Appearing Defendant Pierce Law Group, LLP moves this court for an order quashing service of summons and complaint upon Pierce Law on the grounds that service of summons was not made according to any of the statutorily authorized methods for service of summons.

"When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.'" (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.)

PLG argues Pierce

Law was never personally served with the Summons and Complaint as required by law. Specifically, the proof of service filed by plaintiffs on April 23, 2026 alleges that Pierce Law was served via substitute service through Pessah Law Group. However, Pessah Law Group is neither authorized to accept service on behalf of Pierce Law nor has ever been designated as Pierce Law's agent for service of process.

In

opposition, Plaintiffs argue PLG is asking the court to ignore its own public representations that following the death of its founder, David Albert Pierce, PLG would be shutting down and "key Pierce Law Group Personnel" would move the firm's entertainment practice to Pessah Law Group. PLG further directed visitors to "visit us at our new home" at Pessah Law Group. As a result of these statements, Plaintiffs relied on those representations and attempted the professional courtesy of service by Notice and Acknowledgment through Pierce

Law's longtime counsel, Freeman Mathis & Gary LLP. Counsel declined so Plaintiff instructed the process server to serve PLG through Aditya S. Ezhuthachan, managing partner of Pierce Law Group LLP. The process server then executed substituted service under Code of Civil Procedure section 415.20 by serving the office PLG at its "new home" and leaving the summons and complaint with the individual apparently in charge. Plaintiff notes that the individual apparently in charge was Controller of PLG, Ben Kuerschner. As a result, the service was proper.

The court finds Plaintiff has failed to meet their burden establishing service was proper. While Plaintiff has presented evidence that supports an inference that Pierce Law directed former clients to Pessah, that inference is not the same as proof that service at Pessah was PLG's usual place of business. Telling clients "please visit us at our new home" can be read either as PLG representing that itself now operates at that location or as a referral message telling former clients where its former lawyers and staff can now be found. As noted by Defendant, Plaintiff has not established Ben's connection to PLG, other than speculating that it was Ben Kuerschner. And under *Chinese Theater, LLC v. Starline Tours USA, Inc.* (2025) 115 Cal.App.5th 1048, a co-located relationship with a separate entity or personnel transitions to a separate firm do not establish the defendant's own office for substituted service. Moreover, actual notice does not confer jurisdiction where there has been complete failure to comply with the statute. (See *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 392.)

Based on the foregoing, Specially Appearing Defendant Pierce Law Group, LLP's Motion to Quash Service of Summons of Plaintiff's Complaint is GRANTED.